

submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in informal settlement discussions or other alternative dispute resolution proceedings. Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are directed to meet and confer on the foregoing issues prior to the hearing.

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In The Matter of Alice Carey Revocable Trust

26PR000189

BENEFICIARY THE POPE VALLEY FARM CENTER, INC.'S PETITION FOR
MODIFICATION OF IRREVOCABLE TRUST AND RESTRICTED GIFT

TENTATIVE RULING: The matter is CONTINUED to October 29, 2026, at 8:30 a.m. in Dept. B to allow Petitioner to serve the Petition on Successor Trustee, Union Bank, and all other beneficiaries named in the Trust. (See Prob. Code, § 17203, subd. (a)(1)-(2).)

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

City of Napa v. Brian R. Silver et al

25CV000143

CITY'S MOTION FOR ATTORNEYS' FEES AND COSTS

TENTATIVE RULING: The Motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. NATURE OF MOTION

Pursuant to the moving papers, Petitioner City of Napa (City) moves, pursuant to Health and Safety Code sections 17980.7, subdivision (c)(11) and 17980.7, subdivision (d)(1), Code of Civil Procedure section 1032, subdivision (a)(4), and Napa Municipal Code sections 1.16.010-050, for an order: (1) Declaring that the parcel of real property known as 810, 814 and 816 Brown Street, Napa, California 94559, identified by Assessor's Parcel Number 003-222-011-000 (Subject Property) was substantially dangerous to the health and safety of residents and the public prior to the initiation of this action; (2) Declaring the City the prevailing party in this action; (3) Awarding the City its attorneys' fees and costs in the amount of \$20,040.08

(\$15,665.00 in attorneys' fees, \$1,926.36 in litigation costs and \$2,448.72 in City code enforcement costs), and Any further amounts the Court deems appropriate.¹

B. PROCEDURAL HISTORY

The instant Motion was originally set for hearing on July 28, 2026. On July 20, 2026, Respondent Brian Silver applied, *ex parte*, for an order continuing the hearing and resetting the deadline for filing opposition thereto. The Court granted the application, and on July 22, 2026, entered an Order in the form proposed by Mr. Silver. That Order provides that "The hearing on Petitioner City of Napa's Motion for Attorneys' Fees . . . is continued to August 20, 2026 . . . [¶] Respondent shall file and serve his opposition to Petitioner's Motion for Attorneys' Fees no later than nine (9) court days before the new hearing date, in accordance with California Code of Civil Procedure section 1005(b)."

On August 17, 2026, Respondent, without further leave of Court, filed a 26-page Opposition with some 316 pages of exhibits attached thereto.

The matter came on for hearing on August 20, 2026. The Court heard from Mr. Silver regarding his untimely filed Opposition. The Court ordered the Opposition STRICKEN from the record. (See Minute Order of August 20, 2026.) However, the Court continued hearing on the instant Motion to this date and granted Mr. Silver leave "to file a code compliant and timely response." (*Ibid.*)

On September 4, 2026, Mr. Silver filed an Opposition to the Motion. While there is no proof of service of the Opposition in the file, the City acknowledges such service through its Reply.

While the City asks the Court to disregard the Opposition on grounds that it was filed and served one day late, the City does not contend, let alone show, that it has suffered any prejudice from the delay. Moreover, the City's Reply contains substantive argument addressing the points raised through the Opposition. For these reasons, the Court elects to consider the Opposition and the points raised therein.

C. ANALYSIS

Consequences of a property owner's failure to respond to local agency enforcement actions relating to a violation or public nuisance are governed by Section 17980.7. Among these, subdivision (c) provides for the appointment of a receiver. The statute further provides that "[t]he prevailing party in an action pursuant to this section shall be entitled to reasonable attorney's fees and court costs as may be fixed by the court. (§ 17980.7, subd. (c)(11).)

An award of attorneys' fees under that section, however, is only available where a receiver has been appointed. "[S]ubdivision (11) – the provision regarding attorney fees to the prevailing party – is under (c). Subdivision (c) is limited solely to receivership proceedings. . . . Section 17980.7, subdivision (c) specifies that an enforcing agency 'may seek and the court may

¹ All subsequent statutory references herein are to the Health & Safety Code unless otherwise noted.

order, the appointment of a receiver for the substandard building pursuant to this subdivision. . . .’ Thus, this subdivision does not apply to every situation where a request for a receivership merely appears in the pleading. Rather, it applies when the party seeks and the court orders a receiver.” (*City and County of San Francisco v. Ballard* (2006) 136 Cal.App.4th 381, 401-402 (*Ballard*).)

As Mr. Silver argues, here, no receiver was appointed. Therefore, under the holding in *Ballard*, the Court is without authority to grant the City attorneys’ fees pursuant to Section 17980.7, subdivision (c)(11).

Similarly, Section 17980.7, subdivision (d)(1), provides that “If the court finds that a building is in a condition that substantially endangers the health and safety of residents pursuant to Section 17980.6, upon the entry of any order or judgment, the court shall . . . [o]rder the owner to pay all reasonable and actual costs of the enforcement agency, including, but not limited to, inspection costs, investigation costs, enforcement costs, attorney’s fees or costs, and all costs of prosecution.”

The Court has not made any findings in this action. As such, the City is not entitled to the costs of enforcement pursuant to Section 17980.7, subdivision (d)(1).

Through its Reply, the City argues, for the first time, that it is entitled to its costs and fees pursuant to Code of Civil Procedure section 1021.5. That statute provides that, in certain circumstances, “a court may award attorneys’ fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest” It provides, however, that “With respect to actions involving public entities, this section applies to allowances against, but not in favor of, public entities, . . . unless one or more successful parties and one or more opposing parties are public entities” (*Ibid*; see also *City of Maywood v. Los Angeles Unified Sch. Dist* (2012) 208 Cal.App.4th 362, 433, [reviewing legislative history of the statute].)

Mr. Silver is not a public entity. Therefore, the City is not entitled to an award of fees under Code of Civil Procedure section 1021.5.

Based on the foregoing, the Motion is DENIED.

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Metropolitan Wines LLC et al v. Allied World Assurance
Company Inc. et al

24CV000739

APPLICATION TO CONTINUE TRIAL

APPEARANCE REQUIRED. Because the instant hearing is on a continued *ex parte* Application, it is not subject to Local Rule 2.9.

Based on the papers submitted by the Parties, the Court is inclined to DENY the Application.